

Court No. - 21

Case :- WRIT - C No. - 25088 of 2014

Petitioner :- M/S Kumar Casting Pvt.Limited

Respondent :- U.P.Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,A.S.G.I.-2014/9499,Nripendra Mishra

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard Sri Ranjit Saxena, learned counsel for the petitioner as well as Sri Nripendra Mishra, learned counsel appearing for the respondents no. 1 and 2 and 3 as well as the learned Standing Counsel for the respondent No. 1.

By means of this writ petition, the petitioners have prayed for quashing the demand notice issued by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submit that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009(M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

Order Date :- 1.5.2014/Arun K. Singh

Chief Justice's Court

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Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Dismissed.

For orders, see order of date passed in Writ-C No. 30898 of 2016.

Order Date :- 21.3.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)